

# Texas Expunction & Nondisclosure

## Harris County — Agent Training Reference

A complete operational knowledge base for clearing criminal records in Texas with a Harris County focus: expunction (Chapter 55A) vs. nondisclosure (Gov't Code Ch. 411), eligibility, waiting periods, disqualifiers, procedure, and record requests.

|                    |                                                                                                      |
|--------------------|------------------------------------------------------------------------------------------------------|
| Prepared for       | LegalEase / Expungement.ai — Wilma assistant                                                         |
| Coverage           | State of Texas, focused on Harris County (Houston) — District Clerk & District/County Courts at Law  |
| Primary statutes   | Code of Criminal Procedure Ch. 55A (expunction); Government Code Ch. 411, Subch. E-1 (nondisclosure) |
| Controlling change | HB 4504 (88th Leg.) repealed Ch. 55 and enacted Ch. 55A, effective January 1, 2025                   |
| Document type      | Internal training / retrieval reference — not legal advice                                           |
| Currency           | Reflects law as of mid-2026, incl. the Chapter 55A recodification                                    |

**VERIFY BEFORE RELYING**

Texas recodified its expunction law on January 1, 2025: HB 4504 repealed Chapter 55 of the Code of Criminal Procedure and replaced it with CHAPTER 55A. The substantive eligibility carried forward in most categories, but article numbers changed (e.g., old Art. 55.01 is now spread across Ch. 55A subchapters), new automatic-expunction pathways were added for certain acquittals and dismissals, and some waiting periods were clarified. The agent must cite Chapter 55A, not the repealed Chapter 55, and must verify the current article numbers and any automatic-process status before relying on them. Nondisclosure remains under Government Code Chapter 411, Subchapter E-1.

# How the agent should use this document

Texas has two distinct tools and the agent must route to the right one. **Expunction** (Chapter 55A) ERASES the record — every agency destroys or returns it and the person may legally deny the arrest occurred — but it is generally limited to NON-convictions (acquittals, dismissals, no-charge arrests, certain pardons). **Order of nondisclosure** (Government Code Ch. 411, Subch. E-1) SEALS the record from most private requesters while keeping it visible to law enforcement, courts, and licensing agencies — and it is the tool for many deferred-adjudication and some conviction situations where expunction is unavailable. The agent should always (1) determine the disposition; (2) if a non-conviction, test expunction eligibility and the waiting period; (3) if a conviction or completed deferred adjudication, test the correct nondisclosure subtype; and (4) layer in the Harris County filing mechanics.

## CONTENTS

1. Eligibility rules (expunction vs. nondisclosure)
2. Waiting periods
3. Disqualifying / ineligible situations
4. Case outcome rules
5. Required forms
6. Filing instructions (Harris County)
7. Harris County-specific quirks
8. Fee information
9. Criminal history (DPS) request process
10. Sample petitions and completed examples

## Statutory shorthand used throughout

|                    |                                                                                   |
|--------------------|-----------------------------------------------------------------------------------|
| CCP Ch. 55A        | EXPUNCTION of criminal records (record destruction) — replaced Ch. 55 on 1/1/2025 |
| 55A Subch. A/B     | MANDATORY expunction (acquittal, pardon, dismissed/quashed, limitations expired)  |
| 55A Subch. C       | DISCRETIONARY expunction (e.g., appellate acquittal, prosecutor recommendation)   |
| Gov't Code 411.072 | NONDISCLOSURE — DWI (first offense, low BAC) and certain low-level cases          |
| 411.0725           | NONDISCLOSURE — successfully completed DEFERRED ADJUDICATION                      |
| 411.0735           | NONDISCLOSURE — certain CONVICTIONS after community supervision/release           |
| 411.075(b)         | List of agencies DPS must notify of a nondisclosure order                         |
| HB 4504            | 88th Leg.; recodified expunction into Ch. 55A, eff. Jan 1, 2025                   |

# 1. Eligibility rules

---

Two tools, considered by disposition.

## **Expunction (Chapter 55A) — erases the record, non-convictions**

Available, generally, where the case did NOT end in a conviction or completed deferred adjudication (with limited exceptions). Eligible categories:

- **Acquittal** (found not guilty) — the trial court orders expunction at the time of acquittal under Ch. 55A; no separate petition needed.
- **Arrest with no charge filed** — expunction after the applicable waiting period (Section 2), if no charge was ever filed or the prosecutor certifies the records are not needed.
- **Dismissed or quashed** indictment/information — expungeable in defined situations (e.g., completion of a pretrial-intervention or veterans/mental-health diversion program, dismissal for mistake/false information/absence of probable cause, or a void charging instrument).
- **Limitations expired** — when prosecution is no longer possible because the statute of limitations has run.
- **Pardon** (including pardon for actual innocence) and certain convictions later pardoned.
- **Class C deferred disposition** successfully completed — expungeable (the one deferred-type that allows expunction).
- **Automatic pathways (new under Ch. 55A)** — for qualifying acquittals (ordered at acquittal) and certain dismissed/quashed cases meeting conditions (including no felony conviction in the prior five years).

## **Order of nondisclosure (Gov't Code Ch. 411) — seals from public, broader reach**

Available for many situations expunction cannot reach, principally completed deferred adjudication and some convictions. Main subtypes:

- **§ 411.0725 — deferred adjudication:** after successful completion and discharge/dismissal, seals the record (waiting periods vary by offense — Section 2).
- **§ 411.072 — automatic / low-level deferred:** for certain first-time, lower-level misdemeanor deferred adjudications, nondisclosure can issue without a petition (the court orders it), subject to the offense not being excluded.
- **§ 411.0735 — certain convictions:** seals some misdemeanor convictions after completion of the sentence and a waiting period.
- **§ 411.0731 / DWI provisions:** first-offense DWI nondisclosure, with a shorter wait if an ignition interlock was used for the required term.

#### **AGENT GUIDANCE**

*Route by disposition first. Acquittal, no-charge arrest, qualifying dismissal, limitations expired, or pardon → expunction (the record is erased). Completed deferred adjudication or an eligible conviction → nondisclosure (the record is sealed, not erased).*

*Be precise about the remedy: expunction lets the person legally deny the arrest; nondisclosure only hides it from most private requesters while law enforcement, courts, and licensing agencies still see it.*

## 2. Waiting periods

Expunction waiting periods for arrest-only (no charge filed) cases run by offense level. Nondisclosure waits run from discharge/completion and vary by subtype and offense.

### Expunction — arrest with no charge filed (by offense level)

| Offense level of arrest  | Waiting period before expunction |
|--------------------------|----------------------------------|
| Class C misdemeanor      | 180 days from arrest             |
| Class A or B misdemeanor | 1 year from arrest               |
| Felony                   | 3 years from arrest              |

These arrest-only waits do not apply where a disposition makes the person immediately entitled (e.g., acquittal, dismissal in a qualifying situation, prosecutor certification that records are not needed, or limitations expired) — those can be sought without the level-based wait.

### Nondisclosure — by subtype

| Subtype                                                                 | Waiting period                                     | Runs from                        |
|-------------------------------------------------------------------------|----------------------------------------------------|----------------------------------|
| 411.0725 deferred — most misdemeanors                                   | None                                               | Discharge / dismissal            |
| 411.0725 deferred — misd. under Penal Code chs. 20,21,22,25,42,43,46,71 | 5 years                                            | Discharge / dismissal            |
| 411.0725 deferred — felony                                              | 5 years                                            | Discharge / dismissal            |
| 411.0735 conviction (eligible misdemeanors)                             | 5 years                                            | Completion of sentence / release |
| 411.072 / DWI first offense                                             | 2 years (interlock full term) or 5 years otherwise | Completion                       |

The DWI distinction is the most consequential: a first-offense DWI nondisclosure typically requires only a 2-year wait if an ignition interlock device was used for the full required term, but 5 years otherwise. For deferred adjudication, most ordinary misdemeanors have NO waiting period once the case is discharged, while the enumerated chapters (assaultive, sexual, family, weapons, organized crime, etc.) carry a 5-year wait.

#### AGENT GUIDANCE

*For arrest-only expunctions, compute from the arrest date by level: 180 days (C), 1 year (A/B), 3 years (felony). For dispositions that confer immediate entitlement, there is no level-based wait.*

*For DWI nondisclosure, ask whether an interlock was used for the full term — it cuts the wait from 5 years to 2.*

### 3. Disqualifying / ineligible situations

---

Because Texas keys relief to disposition rather than an offense list, the main disqualifiers are about how the case ended and what else is on the record.

#### Bars to expunction

- **Final conviction** for the offense (other than a later pardon) — convictions are generally not expungeable.
- **Completed deferred adjudication** (other than Class C deferred disposition) — the remedy is nondisclosure, not expunction.
- **Court-ordered community supervision (probation)** under Ch. 42A for the offense, except Class C — bars expunction.
- **The “criminal episode” limitation:** even after an acquittal, the court may not expunge if the charge arose from a criminal episode and the person was convicted of, or is still subject to prosecution for, another offense in the same episode.
- **Felony conviction in the prior five years** — disqualifies certain dismissal-based and automatic expunctions.
- **Pending charges** arising out of the same arrest.

#### Bars to nondisclosure

- **Excludable offenses under § 411.074 / § 411.0735:** nondisclosure is unavailable for offenses requiring sex-offender registration, murder and other homicide, family-violence offenses, stalking, violation of a protective order, and similar enumerated crimes.
- **Any conviction or deferred adjudication during the waiting period** (other than a fine-only traffic offense) resets or defeats eligibility.
- **More than one offense** in some circumstances — certain nondisclosure subtypes require the person to have only the single eligible offense.

#### Common to both

- **Out-of-state and federal records** are not reachable by Texas expunction or nondisclosure.
- **Family-violence findings** are broadly disqualifying for nondisclosure and complicate expunction.

#### VERIFY BEFORE RELYING

The nondisclosure exclusion lists (§§ 411.074, 411.0735) and the expunction “criminal episode” and five-year-felony rules turn on the exact offense, disposition, and the rest of the person's record. Chapter 55A renumbered the expunction provisions in 2025. The agent must map the specific disposition and offense to the current statute and verify against the live exclusion lists before declaring eligibility — the offense label and a general “dismissed” are not enough.

**AGENT GUIDANCE**

*The single most common error is assuming a “dismissed” case is automatically expungeable. Dismissal only qualifies in defined situations; confirm WHY it was dismissed and whether community supervision was involved.*

*Deferred adjudication is the classic expunction trap: completed deferred (except Class C) is NOT expungeable — route it to nondisclosure.*

## 4. Case outcome rules

Disposition determines the tool, the waiting period, and whether a petition is needed. This table is the agent's primary routing logic for Texas.

| Case outcome                                 | Tool          | Route                              | Condition / wait                 |
|----------------------------------------------|---------------|------------------------------------|----------------------------------|
| Acquittal (not guilty)                       | Expunction    | Automatic at acquittal (Ch. 55A)   | No wait                          |
| Arrest, no charge filed                      | Expunction    | Petition                           | 180d / 1yr / 3yr by level        |
| Dismissed/quashed (qualifying reason)        | Expunction    | Petition (some automatic)          | No felony conviction prior 5 yrs |
| Limitations expired                          | Expunction    | Petition                           | Prosecution barred               |
| Pardon (incl. actual innocence)              | Expunction    | Petition                           | Pardon granted                   |
| Class C deferred disposition completed       | Expunction    | Petition                           | On completion                    |
| Deferred adjudication completed (A/B/felony) | Nondisclosure | Petition (some auto under 411.072) | Per subtype wait                 |
| Eligible conviction (misdemeanor)            | Nondisclosure | Petition (411.0735)                | 5 yrs; not excluded              |
| First-offense DWI                            | Nondisclosure | Petition (411.072/.0731)           | 2 yrs interlock / 5 yrs          |
| Final conviction (most)                      | —             | No relief except pardon            | Excluded                         |

Effect of relief: an expunction destroys the records and the person may deny the arrest ever happened, even under oath, in most contexts. A nondisclosure order seals the record from public and most private background checks, but the Department of Public Safety still shares it with the agencies listed in § 411.075(b) — law enforcement, courts, and many licensing bodies — and the person may not deny it in those contexts.

### AGENT GUIDANCE

*Tell users plainly which remedy applies and what it does. Expunction = erased and deniable; nondisclosure = sealed from most private requesters but visible to the § 411.075(b) list. Acquittals and some dismissals are now automatic under Ch. 55A — confirm whether the court already ordered relief before preparing a petition.*



## 5. Required forms

---

Texas relief is by petition/application filed in court. The Office of Court Administration and TexasLawHelp publish statewide forms; Harris County also has local templates and an online screening tool (“Clear Your Record Harris County”).

### Expunction (Chapter 55A)

- **Petition for Expunction** — identifies the petitioner, the arrest (date, agency, offense, cause number), the disposition, the statutory basis under Ch. 55A, and every agency believed to hold records (to be named as respondents/notice parties).
- **Order of Expunction** — the proposed order the judge signs; it lists each agency directed to destroy or return records. Courts will not grant without a complete proposed order.
- Attach the disposition documentation; in Harris County the arresting agency's certified disposition is often required (e.g., HPD expunction records).

### Order of nondisclosure (Gov't Code Ch. 411)

- **Petition for Order of Nondisclosure** under the correct section (411.072 / 411.0725 / 411.0735), with the offense, cause number, disposition, and waiting-period facts.
- **Order of Nondisclosure** for the judge's signature, directing DPS to seal and to notify the § 411.075(b) agencies.
- TexasLawHelp's “Nondisclosure Orders — Seal Your Record” provides the correct form set by subtype.

#### AGENT GUIDANCE

*Pick the form by tool and, for nondisclosure, by the exact § (072 vs. 0725 vs. 0735) — the wrong section is a common rejection reason. Always pair the petition with a complete proposed order naming every record-holding agency.*

*Point Harris County users to the free “Clear Your Record Harris County” tool on TexasLawHelp to confirm eligibility and assemble the right nondisclosure forms before filing.*

## 6. Filing instructions (Harris County)

---

- 1 Get your record.** Obtain your Texas DPS criminal history and, for expunction, a certified disposition from the arresting agency (in Houston, e.g., the HPD expunctions process).
- 2 Confirm the tool and eligibility.** Expunction vs. nondisclosure, the waiting period, the disposition-based bars, and the criminal-episode / exclusion lists.
- 3 Prepare the petition and proposed order,** naming every agency that may hold records (DPS, the arresting agency, the Harris County District Attorney, the District Clerk, jail, and any reporting databases) as notice parties.
- 4 File with the Harris County District Clerk** (civil filing) — Harris County Civil Courthouse, 201 Caroline St.; Class C municipal matters may go through the Municipal Courts (1400 Lubbock). Pay the filing fee (roughly \$25–\$300 depending on the number of notices/agencies served).
- 5 Serve the respondents/notice agencies,** including the Harris County District Attorney's Office, which reviews expunction petitions and may agree or contest.
- 6 Hearing.** Expunction petitions are typically set for a hearing (often ~30 days out); nondisclosure may be decided on the papers. If DPS or the DA contests, the court hears argument.
- 7 Order and execution.** The judge signs the order; agencies then destroy/return records (expunction) or seal them (nondisclosure) on the statutory timeline. Keep a certified copy of the signed order.

### AGENT GUIDANCE

*Naming every record-holding agency is the make-or-break step in Texas — a missed agency means that copy of the record survives. Build the agency list from the DPS history and the arrest paperwork. In Harris County, expect a hearing on expunctions and budget the higher fee end when many agencies must be served; nondisclosure is often quicker and cheaper.*

## 7. Harris County-specific quirks

---

- **Where to file.** Expunction and district-court nondisclosure petitions go through the Harris County District Clerk at 201 Caroline St.; Class C / municipal matters route through the Municipal Courts at 1400 Lubbock.
- **DA review.** The Harris County District Attorney's Office reviews expunction petitions; an agreed expunction (where the DA does not contest) moves faster.
- **Certified disposition from the arresting agency.** Houston cases often require a certified disposition from the arresting agency (e.g., HPD) attached to the petition — a Harris-specific step TexasLawHelp flags as case-specific.
- **Free screening tool.** “Clear Your Record Harris County” on TexasLawHelp looks up the person's Harris County history and screens for both nondisclosure and expunction at no cost.
- **Fee range by notices.** Filing fees scale with the number of agencies to be served, commonly \$25–\$300; make multiple copies and include self-addressed stamped envelopes.
- **Processing time.** Allow roughly 3–6 months under the current digital filing system, longer if contested.
- **Foundation for Continuing Justice.** After a nondisclosure order, this free service will send copies of the order to private background-check companies that may hold the record.

### AGENT GUIDANCE

*For Harris County, lead users to the free “Clear Your Record Harris County” screening tool, then confirm whether a certified arresting-agency disposition is needed before filing the expunction. Set the 3–6 month expectation and note that an agreed (uncontested) expunction with the DA is the smoothest path.*

## 8. Fee information

| Item                                       | Amount               | Note                                      |
|--------------------------------------------|----------------------|-------------------------------------------|
| Expunction petition filing (Harris Co.)    | ~\$25–\$300          | Scales with number of agencies served     |
| Nondisclosure petition filing              | Filing fee + service | District Clerk; varies                    |
| Automatic expunction at acquittal          | \$0                  | Court orders at acquittal; no petition    |
| Texas DPS criminal history                 | DPS fee              | To confirm record before filing           |
| Certified disposition (arresting agency)   | Agency fee           | Often required in Harris County           |
| Fee waiver (Statement of Inability to Pay) | \$0                  | For those who cannot afford court costs   |
| Attorney fees (if represented)             | Varies               | Not required; legal-aid clinics available |

The expunction filing fee in Harris County scales with how many agencies must be notified, generally landing between \$25 and \$300. A person who cannot afford the cost may file a Statement of Inability to Afford Payment of Court Costs to proceed without fees. Automatic expunction at acquittal costs nothing because the court orders it without a petition.

### AGENT GUIDANCE

*Quote expunction fees as a range driven by agency count, and surface the Statement of Inability to Afford Payment for cost-constrained users. Point Houston users to Houston Lawyers Association and other free clinics.*

*The DPS history and any certified disposition fees are the near-certain out-of-pocket costs even when filing pro se.*

## 9. Criminal history (DPS) request process

---

An accurate record is the foundation of any Texas filing — the petition must name the arrest, cause number, agencies, and disposition precisely, and eligibility turns on details the user may not remember.

### A. Statewide history — Texas Department of Public Safety (DPS)

- DPS maintains the statewide computerized criminal history; a person may obtain their own record (Secure Site / fingerprint-based) for a fee.
- DPS is also the central agency a nondisclosure order directs to seal and to notify the § 411.075(b) entities, and an expunction order directs DPS to destroy/return records.

### B. Local records — Harris County District Clerk and arresting agency

- The Harris County District Clerk holds the court file and cause number; the arresting agency (e.g., HPD, Harris County Sheriff) holds the arrest record and the certified disposition often needed for expunction.
- Use these to confirm the disposition and to build the complete list of agencies to name in the petition.

### C. Federal — FBI Identity History Summary

- For records that may extend beyond Texas, the FBI fingerprint-based Identity History Summary is the federal equivalent; Texas relief reaches Texas records only.

#### VERIFY BEFORE RELYING

**DPS request methods and fees can change. The agent should verify the current Texas DPS criminal-history request process and fee, and the Harris County arresting-agency disposition process, at the time of advising rather than quoting fixed figures from memory.**

#### AGENT GUIDANCE

*Frame the DPS history (plus the arresting-agency certified disposition for expunction) as step one. It both grounds the petition and produces the agency list that must be served — the part that most often determines whether the record is fully cleared.*

## 10. Sample petitions and completed examples

---

Texas relief is by petition filed in court (with a proposed order). The examples below show structure and key recitals for the two tools plus the automatic pathway. Names, dates, and identifiers are fictional and illustrative; venue is Harris County.

### Example A — Petition for Expunction (Ch. 55A), dismissed misdemeanor

IN THE DISTRICT COURT OF HARRIS COUNTY, TEXAS  
EX PARTE ANDRE L. CARTER Cause No. 2026-EX-01234

PETITION FOR EXPUNCTION OF CRIMINAL RECORDS (CCP CH. 55A)

1. Petitioner: Andre L. Carter, DOB 07/22/1992, SSN XXX-XX-4471, TX DL ....., residing in Houston, Harris County, Texas.
  2. Arrest: 03/02/2024 by the Houston Police Department; offense charged: theft (Class B misdemeanor); cause no. 1234567.
  3. Disposition: the information was DISMISSED on 06/15/2024 for absence of probable cause; no community supervision imposed; no felony conviction in the preceding five years.
  4. Petitioner is entitled to expunction under Chapter 55A; there are no pending charges from the same arrest or criminal episode.
  5. Agencies believed to hold records (to be served and ordered to destroy/return): Texas DPS; Houston Police Dept; Harris County District Attorney; Harris County District Clerk; Harris County Sheriff (jail); and reporting databases.
- PRAYER: enter the attached Order of Expunction directing each named agency to expunge all records of this arrest. A certified disposition from HPD is attached.

### Example B — Petition for Order of Nondisclosure (§ 411.0725), deferred adjudication

IN THE \_\_\_\_ DISTRICT COURT OF HARRIS COUNTY, TEXAS  
EX PARTE MARIA S. DELGADO Cause No. 1357924

PETITION FOR ORDER OF NONDISCLOSURE (GOV'T CODE 411.0725)

1. Petitioner was placed on deferred adjudication for possession of marijuana (Class B misdemeanor) and successfully completed it; the case was DISMISSED and Petitioner discharged on 05/01/2024.
  2. The offense is not on the 411.074/411.0735 exclusion list and is not a family-violence, sexual, or registration offense.
  3. As an ordinary misdemeanor deferred adjudication, NO waiting period applies under 411.0725; Petitioner has had no other conviction or deferred adjudication (other than fine-only traffic) during the relevant period.
  4. Issuance is in the best interest of justice.
- PRAYER: enter the attached Order of Nondisclosure directing DPS to seal the record and notify the agencies listed in 411.075(b).

### Example C — Automatic expunction at acquittal (Ch. 55A)

C. AUTOMATIC EXPUNCTION – ACQUITTAL (Ch. 55A, Subch. A):  
A defendant tried and found NOT GUILTY is entitled to have the arrest expunged, and under Chapter 55A the trial court orders

the expunction AT THE TIME OF ACQUITTAL – no separate petition is required. The agency execution (destroy/return) still takes place on the statutory timeline afterward. (Exception: the criminal-episode limitation may bar it if the person was convicted of another offense from the same episode.)

### **Proposed Order (both tools)**

Each petition is accompanied by a proposed Order. The Order of Expunction lists every named agency and directs each to destroy or return all records of the arrest under Chapter 55A. The Order of Nondisclosure directs the Department of Public Safety to seal the record and to notify the agencies enumerated in Government Code § 411.075(b).

---

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Texas statutes and Harris County practice and is not legal advice. Texas recodified expunction into Chapter 55A effective January 1, 2025; the agent must verify the current Chapter 55A article numbers, the Government Code Ch. 411 nondisclosure subtypes and exclusion lists, Harris County filing and arresting-agency disposition procedures, and DPS request processes before relying on any rule here.